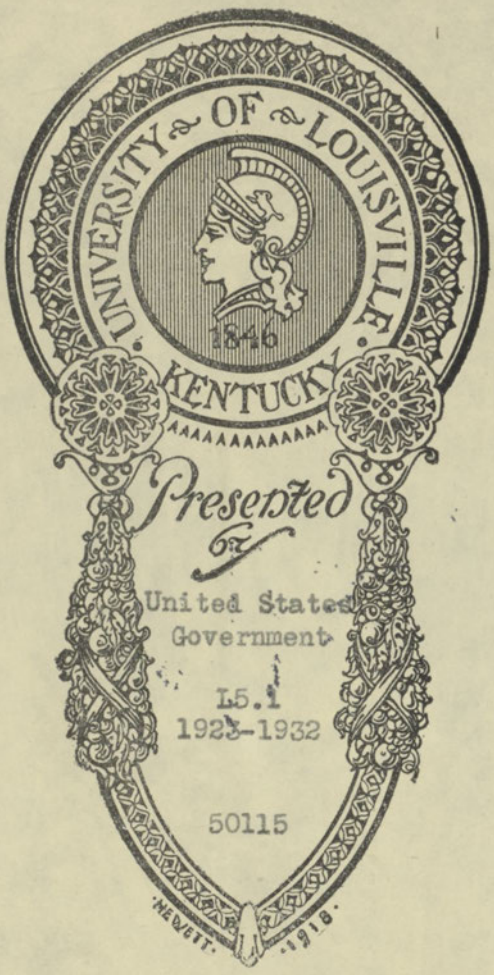
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ELE[illegible]TH ANNUAL REPORT OF THE

CHIEF, CHILDREN'S BUREAU

TO THE SECRETARY OF LABOR

FISCAL YEAR
ENDED JUNE 30

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ELEVENTH ANNUAL REPORT

OF THE

CHIEF, CHILDREN'S BUREAU.

UNITED STATES DEPARTMENT OF LABOR,
CHILDREN'S BUREAU,
Washington, September 15, 1923.

SIR: I have the honor to transmit herewith the eleventh annual report of the Children's Bureau, for the fiscal year July 1, 1922, to June 30, 1923.

MATERNITY AND INFANCY.

ADMINISTRATION OF THE MATERNITY AND INFANCY ACT.

The last annual report described the initial steps taken by the States, the Federal Board of Maternity and Infant Hygiene, and the Children's Bureau, in the cooperative undertaking to reduce the mortality of mothers and babies made possible by the act of Congress of November 23, 1921. As very few of the legislatures were in session in 1922, only 12 of the States were then operating under legislative acceptances of the act. During the last year this number has been increased to 40, all the States having accepted the act except Maine, Vermont, Massachusetts, Rhode Island, Connecticut, Louisiana, Illinois, and Kansas. In Maine the legislature passed an acceptance act which was vetoed by the governor; in Louisiana and in Illinois the act received a substantial majority in the senate, but failed of passage in the house; in Kansas the act passed the senate unanimously, but did not come to a vote in the house. In Connecticut a general act authorizing the acceptance by the State health department of any Federal funds for the promotion of public health was passed in 1919. The Connecticut Legislature in 1923 instructed the health department not to accept the funds available under the maternity and infancy act.

The amount of the Federal funds made available under the 1923 appropriation act for use in accordance with the provisions of the maternity and infancy act was $1,240,000, the full amount authorized by the act. Of this amount, $240,000 was an unmatched fund to be apportioned $5,000 to each State upon approval of its plan of work by the Federal Board of Maternity and Infant Hygiene; the additional $1,000,000, minus $50,000, which was allowed the Children's Bureau for the Federal administration of the act, was to be apportioned to the States cooperating and matching with State funds as

follows: $5,000 to each State, plus an additional amount determined on the basis of population. Fifteen of the States accepting the act were unable to match with any State funds the funds made available by the 1922 appropriation. Appropriation acts passed to date will enable all the 40 States accepting to match in whole or in part the Federal funds.

The staff of the maternal and infant hygiene division of the Children's Bureau, which has been immediately responsible for the Federal administration of the act, has consisted of: (1) Two physicians, serving as director and associate director, (2) a public-health nurse, (3) an accountant, (4) a secretary, and (5) a stenographer.

During the year every State which is cooperating under the act has been visited by either Doctor Rude, the director of the division, or Doctor Watters, the associate director, to discuss plans of work and activities.

At the request of the State health departments and divisions of child hygiene, nurses' institutes on maternal and infant care have been conducted in 17 States by Miss Phelan, the public-health nurse on the staff of the maternal and infant hygiene division. Three other institutes were held during the summer months of 1923.

The financial accounting for Federal funds and State funds used in matching has involved much detail. The necessary forms and reports were worked out after consultation with the General Accounting Office, other departments and boards administering similar acts, and a special representative appointed by the Association of State and Provincial Health Officers. The bureau accountant has visited and checked the books in all but one of the 41 States in which Federal funds were expended during the last year.

The first report of the administration of the maternity and infancy act is being prepared. This will describe the lines of work and budgets of States cooperating. A condensed summary of State activities includes the following items: (1) Increase in number of public-health nurses in either State or county positions, or both; (2) establishment of maternal and infant health centers; (3) stimulation of better birth registration; (4) improvement in milk supplies; (5) surveys of maternity homes and infant homes; (6) studies of the midwife problem; and (7) general educational activities through literature, exhibits, lectures, demonstrations, mothers' classes, and correspondence courses.

The maternity and infancy act makes it the duty of the Children's Bureau to undertake such studies and investigations as will promote the efficient administration of the act. During the last year, in addition to the regular staff of the maternal and infant hygiene division, a physician and a social worker have been employed on a survey of maternity homes in Pennsylvania, where such homes are not licensed. This will be followed by a comparative study in Minnesota, where a plan of licensing and supervision has been developed.

The cooperation of local physicians has also been secured in a number of localities for studies to determine the causes of stillbirths, neonatal mortality, and maternal mortality. These investigations are incomplete as yet and will be continued during the coming year.

It is to be hoped that Congress will see fit to extend the application of the maternity and infancy act to Alaska, Hawaii, the Philippines, and Porto Rico. Hawaii and Porto Rico have officially asked to be included in the benefits of the act. The former made a very strong case at the hearings on the bill, pointing out that its citizens pay Federal taxes and that the needs of its mothers and babies should not be ignored. The latest available figures show so high an infant mortality rate in these islands as to make indifference on the part of the United States impossible. The death rate among infants for every 1,000 live births was shown by the reports of the governors for 1922 to have been 153 in Porto Rico and 120 in Hawaii, and at the last census it was 358 in the Philippine Islands. All of these islands are intelligently endeavoring to lower these rates; still, when they are compared with those of 76 for the birth-registration area of the United States and 42 for New Zealand, further evidence of a national obligation to render at least the same assistance being given the States seems unnecessary.

INFANT MORTALITY IN THE UNITED STATES.

An analysis of infant mortality in the United States birth-registration area, prepared by the director of the statistical division of the bureau, shows the marked decrease of 24 per cent for the six-year period from 1915 to 1921. This decrease was due almost wholly to improvement in health conditions and was explained only in small part by the expansion of the area.

In the mortality from gastric and intestinal diseases the decrease was considerably greater than in the mortality from all causes, the rate having been reduced by over one-third. A decrease of nearly one-third appeared in the mortality from respiratory diseases. The rate from epidemic and other communicable diseases decreased by one-fifth. The mortality from causes peculiar to early infancy showed the smallest rate of decline, only 11 per cent.

The decrease in the cities was more marked than the decrease in the rural areas, and in 1921 for the first time the urban infant mortality rate was below that for the rural districts in the original birth-registration area.

Among the causes of this remarkable reduction in infant mortality must be mentioned the tremendous growth in the last decade of interest in infant-welfare and child-health work, and recently in prenatal work for expectant mothers. The distribution of health-instruction pamphlets to mothers by city, State, and Federal agencies has assumed larger and more comprehensive proportions. The establishment of child-hygiene divisions in nearly all the States within this period (since 1915) is an indication of the awakening interest in these problems. The progress of medical and public-health science, the improvement in the training of physicians and public-health officers, the increased number of practicing pediatrists, are important factors in this decline, together with the steady extension of sanitation to benefit larger numbers of people and the improvement of standards for milk distribution.

While the infant mortality rate of 76 in 1921 was the lowest ever recorded for the United States birth-registration area, the American rate is still higher than the rates for five foreign countries, as shown by the most recent available statistics for the nations of the world.

A valuable analysis will be published in 1924 of the causes contributing to infant mortality in this country as revealed in intensive field investigations of infant mortality made by the bureau in eight American cities. This study shows clearly the marked influence which adequate family income has upon the infant mortality rate. A classification according to father's earnings shows that the lower the father's earnings the higher is the infant mortality rate. The mortality rate of infants whose fathers earned less than $450 a year was nearly three times as high as that which prevailed in families in which the fathers earned $1,250 and over. This relationship between low income and infant mortality is shown to be largely the result of the association of low earnings with economic pressure as measured by the average amounts available for food, clothing, and other necessities for each member of the family.

The influence of economic pressure upon infant mortality is shown to be independent of race or nationality, since the same close relationship between the father's earnings and the infant mortality rate is found in each race and nationality group; and the analysis indicates that it is not due to any greater prevalence of artificial feeding in the low-income groups, since in fact the infants in these groups receive relatively more breast feeding than those in groups more favorably situated as to income.

An interesting point brought out in the study is that if mothers, through gainful employment, added to family earnings, the infant mortality rate was not reduced but raised; the disadvantages associated with the mother's employment more than offset the advantage derived from the income available from her earnings. The rules of health during pregnancy prescribed by physicians, rest and freedom from worry and overwork, are difficult of observance for the mother who must struggle to make ends meet and who often has to supplement the father's earnings by her own work. The mother's employment often entails artificial feeding for the infant. If artificial feeding is resorted to because of the mother's employment, her ill health, or some other reason, the infants in the poorer families are likely to be further handicapped, since with low incomes less money is available for the purchase of milk of good quality and for observing the rules for milk modification and for proper handling of milk.

The influence which the father's earnings exert upon infant mortality is thus augmented by the connection between low earnings and the mother's employment, as it is by that between low earnings and poor housing. So far as low income is responsible for the prevalence of employment of mothers, and for poor housing—conditions which themselves influence infant mortalty—the adverse influence of these factors should be charged to it as the underlying cause.

MATERNAL MORTALITY.

A revision of the bulletin on maternal mortality in the United States and certain foreign countries is in progress. The United States death rate of mothers in childbirth for 1921, while it shows a slight decrease from that for the year 1920, is still higher than the rates in most foreign countries which have good statistics of births

and deaths. Special inquiries made in connection with the revision showed that the proportion of births attended by midwives varied from practically none in States with neither a large foreign element nor a large negro population to 50 per cent in Louisiana, a State with a very large proportion of negroes in its population. The proportion of births in hospitals in the large cities was found to vary from 9 per cent in New Bedford, Mass., to 62 per cent in Minneapolis, Minn. Only comparatively few States require the reporting of cases of puerperal septicemia, a condition to which more maternal deaths are at present attributed than to any other one cause, and in but one State did the number of cases reported exceed the number of deaths certified as due to this disease.

BIRTH REGISTRATION.

One of the first undertakings of the bureau was, in cooperation with other organizations, to acquaint women and the public generally with the importance of birth registration to a child-welfare program. While great progress has been made, 18 States are still not in the birth-registration area. In all of these, the maternity and infancy act has furnished a new reason for urging better laws or better enforcement of existing laws.

Last year, at the request of the State health officer, the Children's Bureau made a test of birth registration in Alabama, in order to assist the State in bringing its registration up to the standard required for admission to the United States birth-registration area. An analysis of the vital statistics indicated that registration for the State as a whole was slightly more than 85 per cent complete. Through this analysis, the areas of adequate and of poor registration were revealed and other valuable information secured for use in a campaign for better registration. The State board of health, including the division of vital statistics and the division of child hygiene and public-health nursing, is using the information secured to bring about improvement in registration of births.

CONSTITUTIONALITY OF THE MATERNITY AND INFANCY ACT.

A test case by Massachusetts.

In 1922, when a bill for the acceptance of the maternity and infancy act was pending before the Legislature of Massachusetts, the question of the power of Congress to enact legislation of this sort was raised. The legislature thereupon requested the opinion of the attorney general of the Commonwealth as to whether the act was or was not constitutional. The attorney general gave it as his opinion that the act was "an attempted exercise of power over the subject of maternity and infancy, and thus an incursion into the field of the local police power, reserved to the States by the tenth amendment" to the Constitution. He further advised that as the money derived from Federal taxation was in his opinion to be illegally divided among States accepting the act the property rights of the citizens of Massachusetts who were Federal taxpayers were involved and the Commonwealth could find a basis for a suit for the protection of the property rights and welfare of its citizens, as well as the defense of its rights as a sovereign State. The attorney

general recommended a proceeding in equity against the officials of the Federal Government who were carrying out the provisions of the act.[1]

At the same time the legislature was informed by the supervisor of administration that Massachusetts was accepting Federal aid under 22 different appropriation acts, as follows: The State department of agriculture, for eradication of white-pine rust and the European corn borer, for marketing work, and for the soil survey; the State department of conservation, for suppression of gypsy and brown-tail moths and prevention of forest fires; the State department of education, for vocational education and vocational rehabilitation education; the State agricultural college, under the Morrill fund and under the Adams, Nelson, and Smith-Lever Acts; the State nautical school, the division of highways, and the State militia, from various Federal funds. It was generally recognized that the maternity and infancy act merely extended the well-established principle of Federal and State cooperation, the benefits of which Massachusetts had accepted in the past and was still continuing to accept, to a new field—the protection of maternity and infancy.

A complaint was filed on behalf of the Commonwealth of Massachusetts in October, 1922 (Commonwealth of Massachusetts *v.* Andrew W. Mellon, Secretary of the Treasury; Grace Abbott, Chief of the Children's Bureau of the Department of Labor; Hugh S. Cumming, Surgeon General of the Public Health Service; John J. Tigert, Commissioner of Education), in which the alleged unconstitutional acts of Congress were recited and an injunction was sought restraining the Federal officers charged with the enforcement of the maternity and infancy act from carrying out its provisions.

A taxpayer's suit.

A taxpayer's suit was started (Frothingham *v.* Andrew W. Mellon, Secretary of the Treasury, et al.), in the Supreme Court of the District of Columbia, in December, 1922, apparently because those interested in having the act held unconstitutional realized the weakness of the Massachusetts case. The second complaint contained substantially the same allegations as the Massachusetts case, except that where the latter alleged that "its rights and powers as a sovereign State and the rights of its citizens have been invaded and usurped" by the act, the Frothingham complaint alleged that the act made "appropriations unauthorized by the Constitution of the United States, resulting in the taking of her (plaintiff's) property without due process of law, in violation of the fifth amendment."

The Supreme Court of the District of Columbia dismissed the plaintiff's bill of complaint in this case, and later the Court of Appeals of the District of Columbia affirmed its decree. An appeal was then taken to the United States Supreme Court, and it was argued, with the Massachusetts case, in May, 1923. In addition to the brief submitted by the Solicitor General, briefs in defense of the act were filed on behalf of 10 States—Arkansas, Arizona, Colorado, Delaware, Indiana, Kentucky, Minnesota, Oregon, Pennsylvania, and Virginia—and by the Association of Land Grant Colleges, as *amici curiae*.

[1] Massachusetts House Document No. 1660, 1922.

These cases raised two questions: (1) As to whether a justiciable question over which the court had jurisdiction was presented in either or both cases, and (2) as to whether Congress exceeded its authority in passing the maternity and infancy act.

Questions as to jurisdiction are often "merely technical"; but here, broad questions of public policy and the interrelations of the various departments of the Government were involved, so that the decision of the court on this point would either support or undermine the basis of the plaintiff's argument that the act was unconstitutional.

Contrary to the popular impression that the Supreme Court can and does decide any and all questions as to the constitutionality or unconstitutionality of laws, the rule is well established that the court will not pass on abstract questions of constitutional law or political jurisprudence, but that it will consider such questions only when the rights of persons or property are involved and when such rights can be presented in some judicial form of proceeding.

Decision of the Supreme Court.

There was no dissent to the decision rendered by the Supreme Court on June 4, 1923, that both these cases must be disposed of for want of jurisdiction.[2] Mr. Justice Sutherland, in delivering the opinion of the court, said:

> What, then, is the nature of the right of the State here asserted and how is it affected by this statute? Reduced to its simplest terms, it is alleged that the statute constitutes an attempt to legislate outside the powers granted to Congress by the Constitution and within the field of local powers exclusively reserved to the States. Nothing is added to the force or effect of this assertion by the further incidental allegations that the ulterior purpose of Congress thereby was to induce the States to yield a portion of their sovereign rights; that the burden of the appropriations falls unequally upon the several States; and that there is imposed upon the States an illegal and unconstitutional option either to yield to the Federal Government a part of their reserved rights or lose their share of the moneys appropriated. But what burden is imposed upon the States, unequally or otherwise? Certainly there is none, unless it be the burden of taxation, and that falls upon their inhabitants, who are within the taxing power of Congress as well as that of the States where they reside. Nor does the statute require the States to do or to yield anything. If Congress enacted it with the ulterior purpose of tempting them to yield, that purpose may be effectively frustrated by the simple expedient of not yielding.
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> * * * * * * *
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> In the last analysis, the complaint of the plaintiff State is brought to the naked contention that Congress has usurped the reserved powers of the several States by the mere enactment of the statute, though nothing has been done and nothing is to be done without their consent; and it is plain that that question, as it is thus presented, is political and not judicial in character, and therefore is not a matter which admits of the exercise of the judicial power.

As to the taxpayer's suit, the court called attention to the fact that—

> The right of a taxpayer to enjoin the execution of a Federal appropriation act, on the ground that it is invalid and will result in taxation for illegal purposes, has never been passed upon by this court. * * * The interest of a taxpayer of a municipality in the application of its moneys is direct and immediate and the remedy by injunction to prevent their misuse is not inappropriate. * * * The reasons which support the extension of the equitable remedy to a single taxpayer in such cases are based upon the peculiar relation of the corporate taxpayer to the corporation, which is not without some resemblance to that subsisting between stockholder and private corporation. * * * But the relation of a taxpayer of the United States to the Federal

[2] 43 Supreme Court Reporter, 597.

Government is very different. His interest in the moneys of the Treasury—partly realized from taxation and partly from other sources—is shared with millions of others; is comparatively minute and indeterminable; and the effect upon future taxation, of any payment out of the funds, so remote, fluctuating, and uncertain that no basis is afforded for an appeal to the preventive powers of a court of equity.

The administration of any statute, likely to produce additional taxation to be imposed upon a vast number of taxpayers, the extent of whose several liability is indefinite and constantly changing, is essentially a matter of public and not of individual concern. If one taxpayer may champion and litigate such a cause, then every other taxpayer may do the same, not only in respect of the statute here under review but also in respect of every other appropriation act and statute whose administration requires the outlay of public money and whose validity may be questioned.

The court further called attention to the fact that—

It is of much significance that no precedent sustaining the right to maintain suits like this has been called to our attention, although, since the formation of the Government, as an examination of the acts of Congress will disclose, a large number of statutes appropriating or involving the expenditure of moneys for non-Federal purposes have been enacted and carried into effect.

Thus, the merits of the question of the constitutionality of the act were not discussed, because the court found a justiciable question was not presented. Congress acted in the belief that the welfare of mothers and babies is a matter of national as well as local interest and that legislation making possible cooperation in reducing the death and morbidity rates is constitutional. The Supreme Court has indicated that on this matter the opinion of Congress is final. The question of Federal aid will remain a question of political expediency over which individuals will divide as they have divided from the first to the last session of Congress. If they consider the measure of national importance and calculated to promote the end sought, they will think it justified; if they disapprove the object or consider it relatively unimportant, they will, when they find themselves unable to defeat the measure on its merits, raise the cry of Federal consolidation and the destruction of local initiative.

CHILD HYGIENE.

MENTAL CLINICS FOR PRESCHOOL CHILDREN.

The value of an understanding of a child's mental difficulties, as well as his nutritional, postural, and other physical needs, has long been appreciated by specialists in mental hygiene. Treatment for the more complicated and serious mental abnormalities is available in most cities and is being made available in less serious cases for children who have become delinquent, but the kind of help and advice which mothers need to enable them to guide their children in habit formation or to change asocial habits that have been formed has not been given in most preschool centers or clinics. As a result habits, fears, and inhibitions—frequently easy to change—which prevent the correction of serious physical disorders, make impossible happy family and community relationships, and influence profoundly adult personality, are ignored or punished because the possibilities of other treatment are not understood.

During the last year the Children's Bureau has cooperated with the Community Health Service of Boston in a demonstration of the

habit clinic as an integral part of a general health service for preschool children. Dr. D. A. Thom, of the Boston Psychopathic Hospital, has been in general charge of the clinic and has prepared an analysis of the results of the experiment which, together with selected case histories, will be published by the Children's Bureau during the coming year.

NUTRITION WORK BY PRESCHOOL CENTERS.

With a better understanding of the importance of correct food habits there has come a demand for a more systematic effort to give to mothers of young children the information which will enable them to take advantage of recent discoveries as to food values. During the last year Agnes K. Hanna has made a survey for the Children's Bureau of the nutrition work being done for children of preschool age in nine eastern and mid-western cities and three rural districts and has prepared a report which sets out the experience of these agencies both in conducting nutrition conferences and in developing a follow-up scheme of home instruction and demonstration.

HEALTH SUPERVISION BY CHILD-PLACING AGENCIES.

The importance of a careful physical and mental examination of children before they are placed in foster homes and of health supervision of all dependent children who are under the care of public or private agencies is generally recognized, although many such agencies have not found it possible to provide either the initial examinations necessary for a decision as to social treatment or subsequent periodic examinations. In a bulletin on Foster-Home Care for Dependent Children to which reference will be made later,[3] Dr. Horace M. Jenks has described the service which is available for Philadelphia agencies through the Associated Medical Clinic of Philadelphia. A study has been made by the Children's Bureau during the last year of the methods of health supervision now being used by leading child-placing agencies in different parts of the country. An analysis of the findings is in progress.

RICKETS AMONG YOUNG CHILDREN IN WASHINGTON, D. C.

An intensive study of the growth of young children, with special reference to the incidence of rickets and to the diets of children, the diets of mothers during the periods of pregnancy and lactation, and the influence of housing and sunlight as causal factors, has been made in the District of Columbia during the last year. This investigation was made possible by the cooperation of the Child Welfare Society of the District.

A plan for an intensive study to be made of a small district in New Haven in cooperation with the pediatric department of the Medical School of Yale University, with a view to discovering practical methods of preventing the high incidence of rickets, is now under consideration.

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[3] See p. 21 of this report.

AN INDEX OF PHYSICAL FITNESS.

In October of 1922 an informal conference on physical fitness of children was held at the Children's Bureau, at which members of the Medical Advisory Committee of the bureau—Dr. Howard C. Carpenter and Dr. Richard Smith[4]—and Dr. C. R. Bardeen, Dr. Franz Boas, Dr. R. A. Bolt, Dr. Taliaferro Clark, Dr. John Foote, Dr. John C. Gebhart, Mr. W. M. Gilbert, Dr. Clifford G. Grulee, Dr. Samuel McC. Hamill, Dr. Milo Hellman, Dr. Henry F. Helmholz, Dr. Buford Johnson, Dr. Vernon Kellogg, Dr. J. H. Mason Knox, jr., Dr. Henry L. K. Shaw, Dr. Edgar Sydenstricker, Miss Harriet Wedgwood, and Dr. Jesse F. Williams, together with Doctor Oppenheimer, Doctor Rude, Doctor Woodbury, Doctor Watters, and Doctor Nichols, of the bureau staff, were present.

At the request of this group, the Children's Bureau has undertaken to assemble available information as to physical fitness in children by means of a survey of the work now being done in this country and through a consideration of the literature on the subject. The following aspects of the study are being given special attention: Anthropometric studies of children; nutrition and metabolism of children; nutritional studies of animals which have a bearing on the subject; a study of the relation of bodily mechanics to physical fitness in children; functional tests of the physical vigor of children; physical tests of children in relation to mental factors; disease and defect in relation to physical fitness of children; and compilation of an annotated bibliography of all the available literature on the growth and development of children.

It is hoped that following the assembling of this information some cooperative research of an immediately practical character will make it possible to determine whether it is necessary or advisable to recommend to parents and teachers that the height and weight standards be supplemented by other tests as a rough index of the physical fitness of children.

AVERAGE WEIGHTS FOR HEIGHT.

A table of average weights for height and age for children under 6 years of age has been prepared and published for the use of physicians, health workers, and other interested persons. This table was based upon the large mass of material collected during the Children's Year Campaign for the weighing and measuring of children.

THE CHILD-WELFARE SPECIAL.

The Child-Welfare Special, a motor truck equipped as a child-health center, which has been used by the bureau for rural demonstrations since 1919, was sent to Tennessee during the last fiscal year at the request of the State board of health and continued its work in that State until late in November. Nearly 2,400 physical examinations were made of preschool and school children in small towns and rural communities of Tennessee. In response to a request from the State board of health and other organizations the truck was sent

[4] Dr. Julius Hess was unable to be present.

to Oklahoma in February, and examinations were begun there in March. To date over 1,000 examinations have been made in Oklahoma.

It is planned to discontinue the operation of the "Special" by the bureau staff in September, 1923, as a number of States have indicated their willingness to supply the staff and operate the Special without expense to the Children's Bureau.

CHILD LABOR.

PROPOSED CHILD-LABOR AMENDMENT.

During the last year there has been much discussion of the need of an amendment to the Constitution in view of the decisions of the United States Supreme Court[5] that Congress does not now possess authority, either through its power to regulate foreign and interstate commerce, or through its power to lay and collect taxes, to enact a Federal minimum standard for the employment of children.

President Harding in his annual message of 1922 recommended a child-labor amendment; 6 joint resolutions proposing child-labor amendments were introduced by Senators[6] and 14 by Congressmen[7] during the first, second, and fourth sessions of the Sixty-seventh Congress.

A subcommittee of the Senate Judiciary Committee held hearings in January, 1923, at which representatives of the American Federation of Labor, American Federation of Teachers, Democratic National Committee, Federal Council of Churches of Christ in America, General Federation of Women's Clubs, National Board of the Young Women's Christian Association, National Congress of Mothers and Parent-Teacher Associations, National Child Labor Committee, National Consumers' League, National Council of Jewish Women, National Federation of Business and Professional Women's Clubs, National League of Women Voters, National Woman's Christian Temperance Union, National Women's Trade-Union League, and the Republican National Committee reported that their organizations favored an amendment. Representatives of the National Catholic Welfare Council and the National Council of Catholic Women reported the interest of their organizations in the object of the amendment, although they had not taken official action in support of it at the time of the hearings.

A representative of the American Constitutional League, the editor of the Southern Textile Bulletin, the commissioner of public welfare and a member of the State Senate of North Carolina, and the chief inspector of the department of agriculture and labor of South Carolina appeared against the amendment.

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[5] Hammer *v.* Dagenhart, 247 U. S., 251, and Bailey *v.* Drexel Furniture Co., 259 U. S. 20.

[6] Johnson, S. J. Res. 200, May 19, 1922; Townsend, S. J. Res. 224, July 14, 1922; McCormick, S. J. Res. 232, July 26, 1922; Lodge, S. J. Res. 256, Dec. 13, 1922; Walsh, S. J. Res. 262, Dec. 30, 1922; Shortridge, S. J. Res. 285, Feb. 24, 1923.

[7] Rogers, H. J. Res. 28, Apr. 11, 1921; Fitzgerald, H. J. Res. 327, May 17, 1922; Perlman, H. J. Res. 332, May 24, 1922; Nolan, H. J. Res. 334, May 25, 1922; Tague, H. J. Res. 340, May 31, 1922; Raker, H. J. Res. 341, May 31, 1922; Voigt, H. J. Res. 355, June 24, 1922; Moore, H. J. Res. 367, June 30, 1922; Foster, H. J. Res. 368, June 30, 1922; Thompson, H. J. Res. 370, June 30, 1922; Frothingham, H. J. Res. 374, Aug. 23, 1922; Graham, H. J. Res. 385, Sept. 22, 1922; Foster, H. J. Res. 407, Dec. 11, 1922; Foster, H. J. Res. 458, Feb. 20, 1923.

The chief of the Children's Bureau submitted the information available as to the numbers of children employed, together with a digest of State legislation on the subject of child labor, and recommended the adoption of an amendment.

An amendment was reported favorably by both the House and the Senate Judiciary Committee but did not come to a vote in either House before adjournment.

STATE CHILD-LABOR LAWS.

It was hoped by many that with the protection of the Federal law removed the States would act promptly to give the children the protection that they had enjoyed while the Federal laws were in operation.

Since the child labor tax law was declared unconstitutional in May, 1922, legislatures in 44 States have been in session. Four States—California, Nevada, Washington, and Wisconsin—petitioned Congress to submit to the States an amendment making possible Federal prohibition and regulation of child labor.

In 32 of the States whose legislatures met this year the standards of protection afforded children by the State child-labor law were in some particular below the standard which the Federal child-labor law had in effect established. So far as the Children's Bureau has been able to learn by correspondence with the States, in only 8 of these—Delaware, Maine, Michigan, Missouri, North Dakota, Rhode Island, South Dakota, and Wyoming—was there any improvement in the age and hour standards of the child-labor law, and in none of them have the State standards been brought up to those of the Federal law in every particular.

Rhode Island took a great step forward this year when it raised to 15 years the minimum age for work during school hours, but the new law is not to become effective until September of 1924, and even then Rhode Island will still allow an excessive number of hours for young children. Maine has this year reduced the maximum daily hours of work for children from nine to eight. Delaware reduced the legal hours of employment for children under 16 from 10 to 8, but it still permits the employment of children less than 14 years of age in canneries and under certain conditions in other occupations.

Even in these States the accomplishments are incomplete, and in two of them—Michigan and Missouri—the raising of one standard was accompanied by the lowering of another. There is, moreover, a much longer list of 24 other States with standards below the Federal, whose legislatures were in session since May, 1922, in which there is no progress along these lines to report. North Carolina, South Carolina, and Georgia, which are rapidly developing into important industrial States, are among those which have done nothing this year for the working children. In North Carolina boys may and do still enter the mills at the age of 12, and boys and girls between 14 and 16 may be employed 11 hours a day. In South Carolina the children between 14 and 16 years of age may work 10 hours a day and 55 hours a week. In Georgia children may go to work in factories at 12 years of age if they are orphans or have widowed mothers dependent on them for support, and they may work 60 hours a week and any number of hours a day. After they reach the age of 14½, they may legally work all night.

THE TREND OF CHILD LABOR.

During the last year the Children's Bureau has received data on the numbers of children to whom work permits or employment certificates were issued in a number of cities,[8] most of them northern cities.

Certificate figures show the numbers of those who presumably intend going to work and are legally entitled to work, but give no indication as to the number who are illegally at work. Also an increase in the number of certificates issued may mean only better enforcement of an old law requiring work permits or that a new law has been passed or an old one improved. Employment-certificate figures do, nevertheless, serve to indicate the general trend in the numbers of children going to work during any specified period, and between census years are the only source of current information as to the extent of the employment of children of legal working age. There are many gaps in the figures secured by the Children's Bureau, but it is hoped that during the coming year more cities will furnish this information to the bureau.

The increase in child labor which occurred during the war years in practically every important industrial and commercial city in the United States and which reached its peak in 1918 began to decline in the late summer of 1920, at the beginning of the recent business and industrial depression. With better times in 1922, the number of children taking out their first work permits began to mount. Of 35 cities for which statistics were secured, 21 reported increases and only 14 reported decreases.

Local figures reflect local industrial conditions and other factors which influence the employment of children, and they would be sure to fluctuate from year to year; but the very general increase in the last six months of 1922 and the first six months of 1923 indicates that the decrease in the number employed during the period of the industrial depression was a temporary one only. The regulation of the hours and conditions of employment for children between 14 and 16 years of age is still of great importance for large numbers of children. Up to date child labor has been controlled—it has not been eliminated. We ought at least to be able to record progressive strengthening of this control from year to year.

THE CHILD ON THE FARM.

The industrial division of the bureau has continued the series of studies begun in 1920 of rural child labor and its relation to school attendance. The attempt has been made to select for study a sufficient number of typical farming areas in different sections of the country to give a fairly representative picture of the work of children on farms. By personal interviews, detailed information has been obtained regarding approximately 11,000 rural child laborers under 16 years of age, in 12 States, and in September of 1923 investigations in two more States will have been completed. It seems unnecessary to point out that helping father with the chores and

[8] An analysis of this material will be found in the Monthly Labor Review for September, 1923, under the title "The Trend of Child Labor in the United States, 1920–23."

mother with the dishes or doing other work which develops a sense of family solidarity and has real training value for children is not classified as child labor. In these surveys the bureau has been studying the full-time employment, usually seasonal, of young children. Such surveys have been made in sugar-beet growing sections of Michigan and Colorado; in representative cotton-growing counties of Texas; in truck and small-fruit areas of southern New Jersey, Maryland, and Virginia; in the wheat, potato-raising, and grazing sections of North Dakota; in rural Illinois; and in tobacco-growing districts of Kentucky, South Carolina, Virginia, Massachusetts, and Connecticut. At the present time a survey of the work of children on truck and fruit farms of the northern Pacific coast is in progress.

The usual method of investigation has been to obtain school records for all children attending local schools and to visit their families and secure schedules for the children reported as having worked during the preceding 12 months. In the case of seasonal laborers schedules were taken for all children in the locality who were found at work at the time of the survey, and school records were then obtained from the schools which they attended.

In the localities for which the information secured has been compiled, from 15 to 40 per cent of the children at work were under 10 years of age, a proportion which is very significant in view of the fact that the 647,309 children under 16 years of age enumerated in the census of 1920 as engaged in farm work include none under 10 years. Only from 17 to 29 per cent of the child workers were between 14 and 16 years of age. Approximately 4,600 worked on the home farm, but 3,700 were hired laborers, and of these over 1,000 were seasonal laborers migrating from the cities chiefly for harvest work.

From 30 to 60 per cent of the children who did farm work in the various localities studied by the Children's Bureau had been absent from school to do this work. About one-fifth of those who had been absent for farm work had missed at least 40 days, or 8 weeks, of school. Largely as a result of their irregular school attendance, from 38 to 69 per cent of the white and from 71 to 84 per cent of the colored children included in the bureau's surveys, information from which has been tabulated, were from one to six years behind the grades which at their ages they should normally have reached. In all areas in which comparative material was secured the amount of retardation was much greater among working than among non-working children attending the same schools.

The protection of the city child from premature employment has in large measure been secured by the votes of country legislators, who were shocked to find young children working in the mines, before furnaces, at dangerous machinery, or for long hours at monotonous indoor tasks. The advantages of farm work as compared with factory work do not need enumeration. But with the improvement in rural schools by State distributive funds and by other means, we should make sure that the farm boys and girls are given the same opportunity to attend school and to profit by group games and other forms of recreation as are the city children. Unfortunately the advantage which the country as compared with the city has offered to children is being steadily reduced. The infant mor-

tality rate in the cities is going down, while the rural rate, although lower to begin with, is remaining stationary. Illiteracy is more general in the country than it is in the city, and the number of children who are going to high school is relatively smaller.

While it might be assumed that a good compulsory school-attendance law is all that is required to control child labor in the rural districts, the experience everywhere has been that it is impossible to enforce a school-attendance law when the community sanctions or does not prohibit child labor; and too often rural children have suffered from the community's approval or tolerance of their employment so long as it was confined to farm work.

Ohio and Nebraska have made a beginning in legislation intended to reach these children. In the former State the amendment to the child-labor law adopted in 1921 prohibits the employment of children under 16 years of age during school hours and prohibits that of children under 14 years of age outside of school hours except in "irregular service." Under this Ohio statute "irregular service" is defined as service which "(*a*) does not involve confinement, (*b*) does not require continuous physical strain, (*c*) is interrupted with rest or recreation periods, and (*d*) does not require more than 4 hours of work in any day or 24 hours in any week." The health commissioner of the district in which employment is afforded to any child is given authority to determine whether the employment involves confinement or requires continuous physical strain and hence whether it can be deemed irregular service within the meaning of this section. A Nebraska statute regulates the hours of work of children employed in the beet fields.

As the conditions are most serious where migratory families are employed in farm labor, this problem is probably the one that should be first attacked; but, unfortunately, it presents special difficulties. That the ordinary machinery for local enforcement of the school-attendance laws will not reach these forlorn migratory children is obvious. Other methods can hardly be said to be in the experimental stage as yet. As to the children who cross State lines, the authorities in the State from which they come are helpless and those in the State to which they go do not regard the education of children from another State, although temporarily under their jurisdiction, as a local problem. This would seem to be a situation in which Federal action may eventually be necessary.

CHILDREN IN STREET TRADES.

Conditions surrounding children engaged in street trades have also been the subject of study during the past year. Only 14 States and the District of Columbia have laws requiring children selling papers or doing other work on the street to secure permits or badges, and only 10 have state-wide laws affecting boys engaged in independent street work. These laws, moreover, often have much weaker provisions for enforcement than those regulating child labor in factories, stores, and other establishments. A few cities have enacted ordinances more or less directly regulating street work, but these are not generally well enforced. Information for over 4,000

children who sold or delivered newspapers, huckstered, did bootblacking, tended market stands, or peddled flowers, candy, gum, etc., was secured in Wilkes-Barre, Pa.; Columbus, Ohio; Atlanta, Ga.; and Omaha, Nebr. Some of the information for Wilkes-Barre and for Columbus has been tabulated.

In Wilkes-Barre 605 children, or 5 per cent of the children under 16 years of age attending school,[9] reported doing street work. Most of the children had been doing the work reported every day, or every day except Sunday, over a period of at least several months, and more than one-half had worked regularly for at least one year. Three hundred and thirteen were newspaper carriers, 169 were newspaper sellers, 75 were bootblacks, and 48 reported various other kinds of street work. The Pennsylvania child-labor law prohibits street selling for boys under 12 years of age and bootblacking for boys under 14 years of age. Nevertheless 251 of the street workers in Wilkes-Barre were under 12. Of the 75 bootblacks 63 were under 14 years of age. Newspaper sellers averaged somewhat younger than did other street workers; one-fifth of them were under 10 years of age. Thirteen per cent (37) of the newspaper sellers, bootblacks, and miscellaneous street workers reported that they were out on Saturday nights at least until 10 o'clock and 6 per cent that they stayed out until midnight or later, a few remaining out all Saturday night or sleeping at the newspaper or agent's office. Seventy-two boys, the majority of whom were newspaper carriers, began their work on school days before 6 o'clock in the morning. The State child-labor law, in addition to the age restriction on street selling and bootblacking, forbids any kind of street work after 8 p. m. or before 6 a. m.

In Columbus 1,435 children, or 5 per cent of the school population under 16,[10] were engaged in street work. The majority of these (986) were newspaper carriers working under unusually good conditions, but 273 sold newspapers and 176 did a variety of street jobs, including selling candy or other articles on the street, tending market stands, and shining shoes. Although there were proportionately fewer young children working on the streets in Columbus than in Wilkes-Barre, 53, or one-fifth, of the newspaper sellers were under 10. There was no State law or local ordinance regulating street work. Nearly two-fifths of the children had been doing the work reported at the time they were interviewed, at least a year. A large proportion worked every day, including Sunday. The children doing street work not connected with newspaper distribution were more likely to work on Saturdays or Sundays than on school days. There was little night selling in Columbus as compared with Wilkes-Barre—only 6 per cent of all the workers and only 14 per cent of the newspaper sellers reported that they were out until 8 o'clock or later even on Saturday nights. Still, 10 of the Columbus children were on the streets until midnight or later, including two boys selling Sunday morning papers who were out all night Saturdays or slept at the newspaper or agent's office.

In most cases the amount of money earned was small; one-third of the Wilkes-Barre workers earned less than $1 a week, and even

[9] Fourteenth Census of the United States, 1920, Vol. III, Population, p. 867.
[10] Fourteenth Census of the United States, 1920, Vol. III, Population, p. 784.

in Columbus, where most of the boys doing street work had regular newspaper routes, nearly one-fifth earned less than that amount. In Wilkes-Barre, where most of the workers had foreign-born fathers, many of whom worked in the coal mines, few children reported that they had gone into street work from economic necessity; and in Columbus, where the population is predominantly native, even fewer children had gone to work because their families needed their earnings. The proportion reporting family need as the reason for going to work in Wilkes-Barre was 12 per cent; in Columbus, only 6 per cent.

CHILD LABOR IN GEORGIA.

Employment of children in Atlanta.

At the request of the Georgia Children's Code Commission a survey of school children employed outside school hours was made in Atlanta, and in addition establishments employing children were inspected, primarily to ascertain the extent of the employment of children under 16 in industries not covered by the present State child-labor law, which applies only to factories, mills, manufacturing establishments, laundries, and places of amusement.

In order to secure the facts desired by the commission, 114 nonmanufacturing establishments were inspected and all children in both public and private schools who were working before or after school or on Saturday were interviewed. Approximately 1,700 school children under 16 years of age, in addition to between 900 and 1,000 engaged in street trades,[11] reported when interviewed at school by bureau agents that they were at that time employed outside school hours. The children engaged in nonstreet-trading occupations comprised 6 per cent of the children under 16 years of age reported by the census to be attending school in Atlanta.[12] Most of them worked after school and on Saturdays, in drug or grocery stores, as errand or messenger boys for miscellaneous establishments, as "table boys" in confectionery stores, or as caddies.

The 114 nonmanufacturing establishments in the city in which inspections were made included drug stores, lunch stands, soda-water fountains, confectionery stores, grocery stores, shoe-shine stands, pressing clubs, telegraph companies, dry-goods stores, and motion-picture theaters. The provisions of the Georgia child-labor law do not apply to any of these establishments except the motion-picture theaters. These inspections discovered 224 children under 16 at work, of whom 116 were regularly employed during school hours, while 49 worked after school hours, 54 were employed on Saturdays only, and 1 worked only on Sundays. Of the 116 children regularly employed during school hours, 35 were under 14. Five of these were working until at least 9 p. m. 6 nights a week in Atlanta moving-picture theaters in violation of the Georgia State child-labor law, which prohibits the employment of children under 14½ years of age in places of amusement after 7 p. m.

The character of the work done by the children was much the same in the different establishments inspected. More than two-thirds, or

[11] See p. 15.
[12] Fourteenth Census of the United States, 1920, Vol. III, Population, p. 222.

156, of the children were selling or delivering merchandise or carrying messages. The remainder were serving or dispensing drinks at soda fountains, shining shoes, ushering at theaters, etc. More children were employed as sales persons than in any other occupation, the largest number working on Saturday only. Of the 55 children working only one day a week, 46 were engaged in selling. Four large 5 and 10 cent stores employed extra girls each Saturday, and of the 60 girls found at work nine-tenths (54) were salesgirls.

Long hours were the rule. Fifty-three children, or 45.7 per cent of those regularly employed during school hours, were working 10 or more hours a day and much longer hours on Saturdays. Of the 55 children employed one day a week all except 7 worked for a period of 10 or more hours. The hours of children working after school were also long. Twenty-nine, or 59.2 per cent, were working four or more hours daily in addition to attending school. Many of the boys employed in confectionery stores and at soda fountains to serve the tables were schoolboys who worked at least six nights a week. It was found that in addition to long daily hours, one-seventh (14.3 per cent) of all the children under 16 worked seven days a week. Delivery boys for drug, grocery, and mercantile establishments worked long hours, and those employed by drug stores worked Sundays as well as week days. Practically two-thirds (144, or 64 per cent) worked between the hours of 7 p. m. and 7 a. m.

The largest single group of children working during school hours were engaged in delivering messages for two telegraph companies. Both companies stated they had fixed 14 years as the minimum age for employment, but neither required any proof of age from an applicant. Seven children under 14 were found at work. The messengers were working full time, six days a week. The actual working-day of the boys employed by one company was longer than the hours of work reported. Although 8 o'clock was the hour at which they reported for work, the fact that each boy had to report daily at the main office to secure his uniform and pass inspection before going to the branch office to which he was assigned meant that the boys must be at the main office at 7 a. m. or shortly after; and although 6 p. m. was the hour at which they were off duty, again they had to go to the main office to deposit suits, caps, etc., so that at least another hour was added to the working day of those messengers working from outlying branches. The messengers at the branch offices of the second company were not required to report at the main office but were on duty an hour longer than the other messengers.

Child-labor inspections in textile mills.

To discover whether the removal of the safeguards of the Federal law had lowered conditions of employment for children, and if so to what extent, inspections were made in November and December, 1922, in textile mills in Georgia, where the standards of the State law were considerably lower than those of the two Federal laws. The latter fixed the minimum age in such establishments at 14 and the maximum hours for children under 16 at 8 a day and 48 a week, and prohibited night work between 7 p. m. and 6 a. m. for children under 16. The State law allowed orphan children or children with widowed mothers to go to work at 12 years of age, provided they secured proper certificates, fixed a minimum age of 14 for other

children, and required children between the ages of 14 and 14½ years to have age certificates. Children were permitted to work as long hours as adults—60 hours a week, with overtime allowed "to make up lost time, not to exceed 10 days, caused by accidents or other unavoidable circumstances." If they were over 14 years and 6 months old there were no restrictions upon their work at night; under that age they were not allowed to work between 7 p. m. and 6 a. m.

Inspections made in 39 representative mills in 17 localities brought to light violations of the Federal standards in all except 3 of the establishments and violations of the State standards in all except 7.

In the 39 mills there were employed 537 children who were under 16 years of age at the time the inspections were made or who had been under that age, but employed, during part of the period between May 15, 1922, when the Federal child labor tax law was declared unconstitutional, and the time of the study (November and December, 1922). It was possible, therefore, to learn whether these children had suffered when the Federal law was nullified. The inspections disclosed among these children 560 violations of the Federal standards, of which 84 were violations of the age, 466 of the hours of labor, and 10 of the night-work standards. The State law was violated in 149 instances. In 65 of these instances children were below the minimum age; in 3, children under 14½ were working at night; and in 81, children between 14 and 14½ years of age were employed without certificates. Violations of the State hour standards could not be ascertained because of the difficulty of determining, when a mill was running more than 60 hours a week, whether the excess came within the exception allowed by the law regarding overtime. In considering night-work violations it should be noted that in only 2 mills, employing 37 children under 16, were inspections made at night. Of the 10 violations of the Federal night-work standard 7 were in these mills and 3 were discovered through interviews with parents.

Of the 478 working children who were under 16 at the time of inspection 57 were under 14 years of age. All except 3 of these were working 10 hours or more a day; and all except 19 of the children between 14 and 16 were working more than 8 hours a day, 399 of them 10 hours or more a day.

The first requisite for enforcing the standards of a child-labor law is a good method of certification for employment. Not only are the provisions of the Georgia law inadequate in this regard but even those which the law contains were not observed. Of the 47 State certificates on file at least 21 had been illegally issued; and for 81 of the 121 children who were between 14 and 14½ years of age at the time of the inspection or some time during the period May 15, 1922, to December, 1922, no certificates were then on file. The provision of the law requiring a child to have attended school 12 weeks of the preceding year in order to secure a certificate was often disregarded.

Nearly two-thirds (63.9 per cent) of the children were employed at spinning, spooling, winding, doffing, and weaving. The full-time weekly earnings of these mill children were less than $5 for 27 per cent and less than $6 for 36 per cent of the 197 children reporting their earnings.

OTHER INVESTIGATIONS OF CHILD LABOR.

Minimum wage for minors.

Thirteen States—Arizona, Arkansas, California, Colorado, Kansas, Massachusetts, Minnesota, North Dakota, Oregon, South Dakota, Utah, Washington, Wisconsin—the District of Columbia, and Porto Rico, have enacted minimum-wage legislation which is still on the statute books; and two States—Texas and Nebraska—have passed minimum-wage laws which were afterwards repealed. The South Dakota law was enacted in 1923. In addition to women and girls, boys under 18 years of age are included in the laws of California, Colorado, Kansas, Massachusetts, North Dakota, Oregon, and Washington, and boys to the age of 21 are included in the Minnesota and Wisconsin laws. This legislation was designed primarily to protect women, but a large number of minors in various industries are affected by the rulings made under these laws.

Several months before the Supreme Court decision declaring unconstitutional the minimum-wage law of the District of Columbia [13] the Children's Bureau began an investigation into the effect of the rulings as to rates for minors and learners in the District of Columbia, California, and Minnesota, where individual certificates were issued to all minors entering employment. According to the records of the commissions, large numbers of children secure certificates to work at learners' rates, remain only a short period on the job, and are lost sight of by the commission. A schedule study of the industrial history of selected groups of minors certificated in these two States and the District of Columbia is being supplemented by payroll records and other data from these same States and also from Wisconsin and Massachusetts. The investigation should indicate whether a comparatively high minimum tends to reduce the number of children employed; whether there is any tendency to discharge the children when they are legally entitled to increases; whether the minimum rate becomes the maximum; whether the minors go into industries in which a legal minimum has not been established, at wages below the minimum for other industries; and, specifically, what becomes of the minors who disappear from the commission records.

Work opportunities for subnormal minors.

Children who are able to make little progress in academic work in the schools are often capable of earning a livelihood under certain circumstances. With a view to securing information as to what these occupations and circumstances are, a study has been made of the work history of 205 children in Newark, N. J., who left the special classes for mental defectives between September, 1916, and June, 1919. A similar study will be made in one or two other cities in which records for a period of years are available.

Industrial accidents to minors.

Studies of the records of industrial accidents to minors in three States—Massachusetts, New Jersey, and Wisconsin—have been undertaken by the statistical division of the bureau. The causes of these accidents as revealed by the records are being tabulated and

[13] Adkins *v.* The Children's Hospital of the District of Columbia, 43 Sup. Ct. Rep., 394.

should furnish a basis for decision as to whether legislative restrictions of the work of minors in dangerous occupations should be broadened and what other steps can be taken to lessen the frequency or to prevent the occurrence of such accidents.

STUDIES OF CHILD DEPENDENCY.

AID TO CHILDREN IN THEIR OWN HOMES.

The bureau publications on so-called mothers' pensions, especially the proceedings of the conference held in June of 1922, have been distributed to those actually engaged in this work by the State boards in Arizona, Delaware, Massachusetts, Minnesota, New Jersey, New York, Ohio, and Pennsylvania.

The publication of a legal chart showing the differences in the various State laws on this subject was of special use in a number of States in connection with bills pending in the various State legislatures in 1923.

At the annual meeting, on May 21, of the committee on public aid to mothers for the care of children in their own homes (formerly the cooperating committee on mothers' pensions), the Children's Bureau was requested to undertake studies of the standards, especially those with reference to health, housing, and education, that prevail in representative States in the administration of such laws. In accordance with this vote and in cooperation with the committee plans are being made for such a study during the coming year.

The collection of current information as to the number of counties in which mothers' pensions are granted, amounts paid, number of children aided, and annual appropriations in the various States has been continued by the social-service division of the bureau.

FOSTER-HOME CARE.

During the latter half of the year a field study was made of the organization and methods of work of child-caring agencies—two of them state-wide—in 10 communities. The agencies were selected as presenting useful examples of child placing in different parts of the country.

A publication is now ready for press entitled "Foster-Home Care for Dependent Children." This includes sections contributed by 11 authorities on child-caring work, each dealing with a different phase of the problem, a bibliography of United States and foreign material on the subject, and a reprint of the conclusions reached at the "White House conference for dependent children" in 1909.

A study of dependent children in the District of Columbia, undertaken at the request of the Board of Children's Guardians, is ready for publication. A feature of the report is a statistical analysis of the data regarding children who were under the care of the board during one year. At the request of the Washington Council of Social Agencies some information was also secured from private institutions, thus making possible some comparisons of the work of the private institutions and that of the public agency.

STATE SCHOOLS FOR DEPENDENT CHILDREN.

Through the cooperation of the State schools and homes for dependent children in Colorado, Michigan, Minnesota, Rhode Island, and Wisconsin—institutions established to be used as receiving homes pending placement in family homes—data were obtained for all the children under the care of these agencies during the last year. This material is being analyzed with special reference to the parental status at the time the children were received as wards of the State, ages of the children when received, the present disposition of the children, reasons for the discharge of those who ceased to be wards during the year, and the length of time the children have been under care.

The field work on a schedule study of 500 children indentured by the Wisconsin State Public School for dependent children has been completed. This study, undertaken at the request of the Wisconsin authorities, has taken into account the children's placement histories and subsequent careers, the family situation at the time the children were removed from their homes, and the histories of the parents after the children were taken over by the State.

AN INSTITUTIONAL HANDBOOK.

Although the foster home is generally recognized as a better instrument for preparing dependent children for normal community life than is the institution there are very large numbers of children now being reared in institutions. State supervisory boards have the immediate problem of what is the best institutional practice at the present time. The bureau was glad, therefore, at the suggestion of the members of the staff of the Georgia Department of Public Welfare, to undertake to edit and enlarge somewhat the manuscript of a "Handbook of Institutions for Dependent Children" that had been prepared by the staff of the Georgia department. An advisory committee composed of representatives of State boards and public and private institutions and of other experts in this field is cooperating in the revision of the handbook. The manuscript has also been submitted to a large number of people throughout the country whose advice and assistance would be of special value. Incorporation of the suggestions received, supplementing of the material on some points, and final editing remain to be done.

SOLDIERS' ORPHANS.

At the request of the national children's welfare committee of the American Legion the bureau has undertaken to assemble information drawn from the experience of the United States in the care of the orphans of the soldiers of the Civil War and from the care being given to soldiers' orphans at the present time in England, France, and Belgium.

LEGAL RESEARCH.

A considerable amount of legal material has been prepared by the social-service division during the year. In addition to the chart analyzing the provisions of so-called mothers' pension laws, the texts

of these laws and of illegitimacy laws have been compiled for the years following the publication of earlier reports. Bulletins have been completed analyzing the laws relating to the importation of dependent children and to sex offenses against children, and giving the texts of these laws, and a report on the subject of adoption laws is being prepared.

JUVENILE COURTS.

STUDY OF THE COURTS IN 10 CITIES.

A report on the investigation of the organization and methods used in the juvenile courts of Boston, Buffalo, Denver, Los Angeles, Minneapolis, New Orleans, St. Louis, San Francisco, Seattle, and Washington, D. C., has been completed after several interruptions and should be available for distribution early in 1924.

COMMITTEE ON STANDARDS.

At the request of a conference on juvenile-court standards held in Milwaukee on June 21–22, 1921, under the auspices of the Children's Bureau and the National Probation Association, a committee was appointed by Julia C. Lathrop, then Chief of the Children's Bureau, to work out standards.

This committee was at work for two years. It presented a preliminary report to a second conference held in Providence in June, 1922; in January, 1923, it held a two-day session in Washington, at which suggestions of committee members and others were carefully considered and a tentative draft of standards was prepared. This draft was mimeographed and sent by the Children's Bureau to more than 200 persons, including judges, probation officers, officers of child-caring agencies, and others interested in juvenile-court work. A considerable proportion of those to whom the draft was sent made specific suggestions, which were carefully considered at meetings of the committee in May of 1923.

A report was presented to a third conference held in Washington on May 18, 1923, under the auspices of the Children's Bureau and the National Probation Association. There was free discussion in this conference, and, except for certain amendments recommended to the committee, the standards were approved as submitted. They have been published by the bureau.

The members of the committee were not agreed on all points, but each statement represents the prevailing opinion as expressed in the committee meetings and in the suggestions received from the sources indicated above.

The fundamental principles underlying the standards may be summarized as follows: (1) That the court dealing with children should be clothed with broad jurisdiction, embracing all classes of cases in which a child is in need of the protection of the State, whether the legal action is in the name of the child or in that of an adult who fails in his obligations toward the child; (2) that the court should have a scientific understanding of each child; (3) that treatment should be adapted to individual needs; and (4) that there should be a presumption in favor of keeping the child in his own home and in his own community, except when adequate investigation shows this not to be in the best interest of the child.

The committee on juvenile-court standards is also cooperating with the bureau in an effort to work out some plan of uniform recording and reporting by the juvenile courts of a few essential facts, with a view to making available comparable current statistics on juvenile delinquency in an area which it is hoped may eventually be large enough to furnish a basis for national figures.

RECREATION.

During the last year a specialist in recreation has been added to the bureau staff and a more systematic assembling of information on this subject has been begun. A brief manual of games for organized play adapted from standard sources has been published, a handbook of games for the blind is under way, and some consultation with local groups has been possible during the year. It is hoped that this service can be greatly extended in the future.

Recreation is of fundamental importance in a program for children, whether considered from the standpoint of health, of education, or of social adjustment. It is perhaps even less within the control of the individual parent than health or education, and yet a plan as to how the play needs of children can be adequately met remains to be worked out by most communities. The bureau should be able to supply these communities with information as to the relative value to the children and the costs of different programs that have been tried out by both public and private agencies in various parts of the country.

CHILD WELFARE IN PORTO RICO.

In the spring of 1923 the bureau made a brief study to follow up the Children's Year survey in Porto Rico. In spite of many and serious difficulties, the child-welfare activities initiated during the previous year have gone forward in a most encouraging manner owing to the very general local interest. Play and athletics have been given greater importance throughout the school system, and the training of teachers in play has established those activities upon a firm foundation. A Manual of Games, prepared by the bureau for use in Porto Rico, has been distributed through the Porto Rico Department of Education to all the grade teachers on the island. The commissioner of education states in his annual report for 1922 that within that year the number of urban school playgrounds increased from 50 to 179 and that of rural school playgrounds from 16 to 261, the number of municipalities having community playgrounds from 4 to 18, and the number of recreation and athletic associations from 15 to 39.

The 1923 session of the legislature created a bureau of social welfare under the department of health, with an appropriation of $60,000, and with provision for flexibility in developing this work. This bureau will have supervision of public-health and infant-welfare work and of the island's charities, the latter having been delegated to the department of health under the organic act. Two years ago the supervision of municipal charities was brought under the insular department of health, but without adequate means for carrying out the work. With the means now provided great progress

should be made in the near future. During the last year the number of child-health centers established by the insular and municipal departments working in cooperation with the Red Cross has been increased, their service has been strengthened, and public interest in this work has become widespread. The program of Baby Weeks has been continued, and an institute on infant welfare and other aspects of public health has been conducted most successfully.

In 1923 the legislature provided for cooperation between the Porto Rico health department, the San Juan health department, and the American Red Cross in establishing a training school for nurses. Development of public-health activities has been hampered by the lack of an adequate number of trained nurses on the islands; so this provision for increasing the number of nurses and raising the general standards of nursing is of basic importance to child health.

The 1923 legislature has provided $60,000 for the establishment of an insular puericultural and maternity institute for promoting the hygiene of maternity and infancy. The institute is to have consultation centers for expectant mothers and for children, besides hospital facilities for women during confinement.

The university summer courses in home hygiene have been continued with special emphasis on infant and child care. An experimental course in social service was given during the regular term of the university, which helped to call attention to the whole field of child welfare. Health teaching has been continued in the schools. Dental clinics have been extended by the cooperation of the Junior Red Cross and the municipalities. To further the health and social program, the Girl Scouts organization is sending a worker to organize scout work for girls through the insular department of education. The new building for the school for blind children will be ready for use next year. The business men's organizations have taken a definite interest in the homeless boys of San Juan and have raised funds for constructive work to assist these children.

CHILD-WELFARE COMMISSIONS.

For the study of child-welfare needs and the coordination and revision of legislation affecting children, child-welfare or children's code commissions have been created in three States which had not previously undertaken this type of activity—Georgia (1922), Florida (1923), and Pennsylvania (1923). In Kentucky and Maryland new commissions have been created to take the place of commissions whose period of service was expiring.

In Delaware an administrative child-welfare commission which has been succeeded by a health and welfare commission had as one of its functions the study of the needs of children and recommendations for legislative action. This commission now has one representative on a "children's code commission" newly established to study the laws concerning the welfare of minor children.

South Dakota has changed the membership of its child-welfare commission from officials of State departments to three citizens, of whom two are to be women. The commission is instructed to investigate the conditions of dependent and delinquent children and the conditions of child labor, and to prepare and submit to the

legislature a complete code of laws relating to children. The State welfare commission of Utah is continued by amendments to the law establishing it in 1921 and is instructed to file a report not later than November 30, 1924.

Reports for consideration in 1923 sessions of the legislatures were made by commissions in Georgia, Kansas, New York, North Dakota, Utah, and West Virginia. The North Dakota commission, with which the Children's Bureau cooperated by making a series of studies, was signally successful in its efforts to secure more adequate legislation. Of 25 bills proposed by the commission 20 were enacted into law. As a result of the commission's work the child-labor law has been greatly strengthened, the State board of administration has been clothed with supervisory powers over maternity homes and hospitals and child-caring institutions and agencies, and provision has been made for the regulation of maternity hospitals and of the placement of children by midwives and hospitals, and for the regulation of child-caring institutions and of the placement of children in family homes. The mothers' pension law has been amended in various respects, including the raising of the age limit from 14 to 16 years; the uniform illegitimacy act has been adopted with some changes, and laws have been enacted providing greater safeguards for children in the matter of adoption and transfer of parental rights. The State board of administration has been given authority to fix maximum hours and minimum wages for minors in North Dakota, to determine reasonable classifications of employment for minors, and to prohibit their employment in occupations dangerous to life, health, safety, and welfare. Enforcement provisions have been strengthened by requiring standard evidence of age for employment certificates, by requiring certificates for work outside of school hours and during vacations, and by raising the educational requirement for certificates for work during school hours to completion of the eighth grade or nine years' attendance.

The Kansas Children's Code Commission, which reported to the 1921 session of the legislature and which was reappointed and reorganized in 1922, recommended a number of bills to the 1923 legislature. Only three laws were enacted as a result of these recommendations, one relating to compulsory school attendance, one relating to deaf, dumb, and blind children, and one authorizing the establishment, in the discretion of the voters, of county or city juvenile detention homes.

The New York State Commission to Examine Laws Relating to Children recommended to the 1923 legislature eight measures which were enacted into law—some of them after being considerably changed: A bill authorizing State aid for institutions caring for deaf, dumb, and blind children; a bill relating to jurisdiction in truancy cases; a bill repealing the provisions legalizing the binding out of children under the old indenture system; three bills relating to mothers' allowances, extending the application of the law; a bill giving the State board of charities supervisory power over placing-out agencies; and a bill providing double compensation when a child under the age of 18 is injured or killed while working illegally. The commission was continued and a new appropriation made for its work.

Four bills sponsored by the Utah State Welfare Commission, which reported to the governor in January, 1923, were passed. These acts provided for the acceptance of the Federal maternity and infancy act, the regulation of the placing out of children, the organization by local officials of play and recreational activities, and the continuation of the commission for another period of two years.

The West Virginia Child-Welfare Commission, created in 1921, submitted a report which included specific recommendations for legislation and a statement of the "rights of childhood" that should be taken into consideration in a legislative program. Bills were passed amending the mothers' pension law, enlarging the powers of the State board of children's guardians, and creating county child-welfare boards at the option of the counties.

The Children's Bureau has continued to cooperate with child-welfare commissions by supplying information and copies of its bulletins. At the request of the Georgia commission a study has been made of street trades and other gainful employment of children in Atlanta, and further studies are contemplated. A revision of a bulletin entitled "State Commissions for the Study and Revision of Child-Welfare Laws," first published in 1920, has been prepared and is now in press. It includes a history of the development of State commissions, a statement of the essential features in commission programs, summaries of organization and plans of work, and a list of reports and articles relating to the work of commissions.

CHILD-WELFARE LEGISLATION IN 1923.

During 1923 the legislatures of 43 States have met in regular session, and bills relating to many aspects of child welfare have been considered. As in previous years, a coordinated advance in the whole field of child care is not recorded in the legislation of any State which did not have before it the carefully considered recommendations of a child-welfare or children's code commission. The results of the work of these commissions have already been summarized. Some additional definite gains have been made, but many bills whose passage would have been in the interest of children have failed of enactment. On the other hand, a few bills which would have meant retrogression instead of progress were considered and most of them, fortunately, were defeated.

The Children's Bureau has been receiving from officials of the various States copies of bills relating to child welfare and information concerning the action taken upon these bills. Twenty-nine States have passed laws providing for the acceptance of the Federal maternity and infancy act. Reference has already been made to the raising of child-labor standards in a few States and to the measures especially recommended by child-welfare or children's code commissions which were enacted into laws.

Other legislation covered many aspects of child care.[14]

Provision for the education of blind and deaf children and for the prevention of blindness has been made in several States. Kansas

[14] Indiana has made mandatory the appointment of county boards of children's guardians. For other important legislation regarding State and county boards dealing with children, see pp. 25ff.

has created a commission for the blind, to cooperate with State and local boards in preventing blindness, alleviating the condition of the blind, and promoting their personal, economic, social, and civic well-being, and to aid the blind by home instruction and assistance in marketing their products. Michigan has granted State aid to school districts establishing special schools for the blind and those with defective vision between 3 and 20 years of age, and to school districts establishing special schools for the deaf and those with defective hearing, and provides for supervision of these schools. Minnesota, by amendment, has made mandatory the establishment by school districts of special classes for blind children on petition of the parents or guardians of eight such children, and has broadened the conditions under which special classes for deaf children may be established and increased the amount of State aid that may be allowed for such children. North Carolina has created a bureau of labor for the deaf to study methods of education and opportunities of employment and to promote the welfare of the deaf. Oregon has made provision for a grant of $500 per year to every blind student in Oregon State institutions of higher learning. Pennsylvania also has made provision for aid to blind students regularly enrolled in institutions of higher learning or in professional or vocational schools. South Dakota has changed the age qualification for admission to the State school for the blind from " under 30 " to " over 6 and under 21 years," persons over 21 being allowed admission under certain circumstances, and has extended the period of instruction from 10 to 12 years. The South Dakota State Board of Charities and Corrections is authorized to provide for the care of blind children under 6 years of age. Pennsylvania has authorized the State council of education to establish standards for all institutions for the blind and deaf which receive State aid. Massachusetts has given to the State department of education authority to establish special classes for deaf children in not more than six towns at State expense.

The special needs of crippled children have received consideration in a number of States. Illinois and Michigan have provided for State aid to school districts establishing special schools or classes and meeting State standards of education for crippled children. Oregon has provided for visiting teachers to give home instruction to crippled children between the ages of 6 and 18 who have not completed the eighth grade. North Dakota, Oklahoma, and Pennsylvania have provided for hospital treatment, at county expense, of crippled children whose parents are unable to provide adequate treatment. Illinois has provided for a survey by the department of public welfare of the numbers, location, and types of specially handicapped children of school age from the medical, psychological, and social standpoints.

Laws substantially conforming to the uniform illegitimacy act which was approved by the National Conference of Commissioners on Uniform State Laws and by that organization recommended to the States for adoption have been passed in Nevada, New Mexico, North Dakota, and South Dakota. California has amended its law relating to nonsupport of legitimate or illegitimate children, reducing the offense to the grade of a misdemeanor but strengthening the law in some respects; Iowa has provided that the costs of legal action in

illegitimacy cases shall be paid by the county if the defendant is found not guilty. Ohio has passed two acts relating to illegitimacy, one of which gives the juvenile court concurrent jurisdiction, increases the amount of surety required, declares that compromise between the mother and reputed father shall not be a bar to prosecution for failure to support the child, and provides for payment by the father of expenses of pregnancy and confinement. South Dakota, in addition to adopting the uniform illegitimacy act, has extended the inheritance rights of illegitimate children. New Jersey has adopted a resolution for an investigation of the conditions and laws relating to children born out of wedlock and for making uniform the law relating thereto; recommendations are to be made to the next session of the legislature.

North Carolina and Rhode Island have been added to the list of States which have adopted the system of public aid to children in their own homes. Changes in previously enacted mothers' pension laws have been made in Alaska, Arkansas, California, Connecticut, Delaware, Idaho, Illinois, Iowa, Michigan, Minnesota, New York, North Dakota, Pennsylvania, West Virginia, and Wisconsin. These are in the nature of changes in the method of administration and the general application of the law, such as definitions of residence, causes of dependency, amount of grant, powers of local boards, penalties for fraud, etc. Illinois and North Dakota have raised the age limit of children for whom aid may be given from 14 to 16, and West Virginia, from 13 to 14. Pennsylvania has increased its biennial State appropriation for mothers' allowances from $1,000,000 to $1,750,000. Colorado has provided for aid to mothers for six months before and after childbirth, to be administered as the mother's compensation act is administered.

Provision for two studies which should yield interesting material on the relation of children to the courts has been made by an Oregon resolution for a study of the welfare problems now delegated to the county courts, and a Massachusetts resolution directing an inquiry into the results of probation.

South Carolina has passed a children's court act applicable to counties of 90,000 to 100,000 population. Laws relating to juvenile courts or the delinquency of minors have been amended in Colorado, Idaho, Indiana, Iowa, Michigan, Minnesota, Missouri, Montana, Nebraska, Nevada, North Carolina, North Dakota, Ohio, Oregon, Pennsylvania, and Rhode Island. Colorado has raised the age of dependency and delinquency from the sixteenth to the eighteenth birthday and extended the adult jurisdiction of the juvenile court. The age limit for the jurisdiction of the court in counties of 50,000 population and over has been raised in Missouri from 17 to 18; Pennsylvania has provided for the presence of a probation officer at the examination of any minor before a grand jury. Ohio has passed a law providing that in any case in which the common-pleas court, or a probate court having jurisdiction, has made an award of custody of a minor child or children and an order for support, the court may certify the case to the juvenile court for further proceedings, and the jurisdiction of the common-pleas or probate court as to custody and support shall cease. New York has provided for the commit-

ment of wayward girls above the juvenile-court age but under the age of 21 years, without arrest, confinement in jail, or the establishment of a criminal record.

Laws relating to adoption and guardianship have been amended in Delaware, Idaho, Michigan, Nevada, North Dakota, Ohio, Oregon, Tennessee, Utah, Vermont, and Wisconsin. Ohio, South Carolina, and Tennessee have made father and mother joint and equal natural guardians, and North Dakota has provided that the father and mother of a legitimate child are entitled equally to his custody, service, and earnings. A number of laws have been enacted affecting the powers and duties of guardians as related to the property of their wards. North Dakota and Utah have passed laws regulating the bringing of children into the State for placement or adoption. The New York Legislature passed a bill providing for full investigation and a six-month trial period in adoption cases, but the measure was vetoed by the governor. North Dakota and Michigan have made provision for investigations in such cases, while Vermont has made such investigations discretionary with the court.

Michigan and Pennsylvania have revised their laws relating to persons suffering from mental disease or mental defect and institutions for the care of such persons. Texas now gives the county and district courts jurisdiction to determine the status of feeble-minded persons and specifies that women of childbearing age and children are to be given preference in institutional care if accommodations are not adequate for all. Ohio has given the department of public welfare power to provide for the care, supervision, maintenance, and training of the feeble-minded committed to its custody, either by placing them in institutions or by providing for them elsewhere. Minnesota has given the State board of control power to exercise general supervision over feeble-minded persons committed to its care who are being provided for outside of institutions.

In order to meet the recreational needs of children Georgia, Idaho, Illinois, North Carolina, South Dakota, and Utah have permitted towns or school districts to levy special taxes or issue bonds for the purchase of land, buildings, and equipment for playgrounds, gymnasiums, and other recreational purposes. Indiana and South Dakota have authorized municipalities under restrictions to expend public funds for music. Nevada has authorized the setting aside of 25 areas as State recreation grounds or game preserves. Iowa, Minnesota, and Ohio have passed laws relating to physical education in the public schools. Utah has given permission for the use of school buildings for recreational purposes.

Some of these measures make only slight—though much-needed—changes in procedure or in the scope of existing machinery. In the legislation of the country during the year, on the whole, outstanding gains have been made in no field of child welfare other than that of maternity and infant hygiene. Laws, however, are only one measure of progress. The way in which the laws are administered determines the real gains for the children. It is encouraging to note that reports of improved administrative practice are coming from many quarters; but there are also reports of the welfare of children being made subordinate to political or selfish personal ends.

ADVISORY COMMITTEE ON TRAFFIC IN WOMEN AND CHILDREN.

Traffic in women and children is one of the few subjects as to which there had been international legislation or international agreement for legislation prior to the war. The first White Slave Conference was held in 1902; the United States was represented at the conference and in 1908 acceded to the international agreement of 1904 which grew out of the first conference.[15]

The most important provisions of this first agreement were for the appointment of a central authority to coordinate all information and to correspond with central authorities in other countries on this subject; and, within legal limits, watching at railway stations and ports to prevent the traffic, repatriation of foreign prostitutes, and supervision of agencies finding employment abroad for women and girls.

A second conference—at which, also, the United States was represented—was held in 1910. According to the terms of the convention of 1910, signed at this conference, the signatories undertook to make the procuring or enticing for immoral purposes of a woman or girl under age with or without her consent, or of a woman or girl over age without her consent, a punishable and extraditable offense. Some 13 nations, including the most important European nations and Brazil, were parties to this second agreement. The United States Government reported that it was in sympathy with the proposals, but that under the American Constitution these were matters which came within the legislative field of the several States rather than that of the United States.

With these precedents, it was to be expected that the treaty of Versailles would include this subject.

In the summer of 1921 a conference on the traffic in women and children was called by the League of Nations and attended by its membership. At that meeting[16] a number of recommendations were made, some of which were embodied by the assembly of the league in a new convention which was opened for signature at Geneva from September 30, 1921, to March 31, 1922. This convention is an advance over that of 1910 in that the contracting parties agree to take measures to discover and prosecute persons engaged in the traffic in children of both sexes, to secure the punishment of persons attempting to entice or procure women and girls for immoral purposes, to license and supervise employment agencies, and in connection with immigration and emigration to adopt such administrative and legislative measures as to check the traffic in women and children.[17] Among the other recommendations of the commission of 1921 was one that a permanent advisory committee on the traffic in women and children should be created by the Council of the League of Nations, which would serve as a committee of experts to watch developments in this field and to consider ways in which the traffic

[15] Information as to the extent and character of the traffic discovered by the United States Immigration Commission in 1907 and 1908 led to the United States' adherence to the agreement of 1908, to the enactment of the Mann White Slave Act, and to the tightening of the immigration laws. The American laws go further in outlawing the business of prostitution than the conventions of 1904, 1910, and 1921 require.

[16] International Conference on Traffic in Women and Children—General Report of the Work of the Conference: League of Nations Reports, C. 227, M. 166, 1921.

[17] International Convention for the Suppression of the Traffic in Women and Children—League of Nations Publication A 125 (2), 1921, IV.

might be prevented. This recommendation was approved and a committee was appointed, including representatives of the British Empire, Denmark, France, Italy, Japan, Poland, Rumania, Spain, and Uruguay, and assessors for the international private organizations engaged in combating the traffic.

The advisory committee held its first meeting in June and July of 1922. Among the resolutions which it adopted was the following:

> The advisory committee recommends that, in view of the great interest which both Germany and the United States have shown in the question of the traffic in women and children and of emigration, both these countries should be invited by the council of the league to appoint members to serve on the advisory committee.

This resolution was favorably considered by the council and assembly and an invitation was accordingly extended to the United States and Germany to appoint members to serve on the advisory committee. The Secretary of State, with the approval of the President, appointed the Chief of the Children's Bureau to represent the United States on the committee in an unofficial and consultative capacity.

The second meeting of the committee occurred in Geneva, March 22–27, 1923, and was attended by the Chief of the Children's Bureau. Other representatives were as follows:

Delegates appointed by Governments.

British Empire	Mr. S. W. Harris (chairman).
Denmark	Dr. Estrid Hein (vice chairman).
France	M. Bourgois (substitute for M. Regnault).
Italy	M. le Marquis Paulucci de Calboli.
Japan	M. Okuyama (with M. Usami as substitute).
Poland	M. Stanislas Posner.
Rumania	M. Margaritesco Greciano.
Spain	M. Avelino Montero Rios y Villegas.
Uruguay	Dr. Paulina Luisi.

Assessors appointed by the voluntary associations.

International Bureau for the Suppression of the Traffic in Women and Children	Miss Baker.
International Women's Organizations	Mme. Avril de Sainte-Croix.
Association catholique internationale des œuvres de protection de la jeune fille	Mlle. Thurler (substitute for Mme. de Montenach).
Fédération des Unions nationales des amies de la jeune fille	Mme. Studer-Steinhauslin.
Jewish Association for the Protection of Girls and Women	Mr. S. Cohen.
Secretary	Dame Rachel Crowdy.

The resolutions adopted by the committee were:[18]

1. The advisory committees having decided that, during the present session, only the discussion of the draft report to be presented to the council should be taken in public, requests the council to state whether it desires full publicity to be given in future to the meetings of the advisory committee, subject to its discretion.

2. The advisory committee recommends that the council should instruct the secretariat to prepare a summary of the annual reports received from Governments and to distribute it to all members of the league and of the advisory committee.

[18] Advisory Committee on Traffic in Women and Children. Report to the council on the work of the committee during its second session. League of Nations Reports C. 226, M. 166, 1923, IV.

3. The advisory committee recommends that the council should invite each Government which has not already furnished a full statement of the laws and regulations in force in its country relative to the traffic in women and children to do so; that the secretariat should cause a digest of these laws and regulations to be prepared and distributed to the members of the league and of the advisory committee, and that information regarding new laws and regulations should be distributed annually.

4. The advisory committee recommends that the council should again draw the attention of all Governments to the desirability of adhering to or ratifying the convention of 1921 without delay.

5. The advisory committee recommends that the council should be asked to obtain, with the collaboration of the International Labour Office, information on the following matters relating to the emigration of women and children: (*a*) Arrangements for the protection of emigrants and transmigrants before departure. (*b*) Regulations providing for their protection during the voyage. (*c*) Measures taken to accommodate and to find employment for them on arrival. (*d*) Treatment of undesirables.

The voluntary associations should be asked to supply such information on these matters as they can furnish from their own experience or inquiries.

6. The advisory committee, having, at the request of the third assembly of the league, examined the question of the employment of foreign women in licensed houses, recommends that, pending the abolition of the system of State regulation, no foreign woman should be employed or carry on her profession as a prostitute in any licensed houses.

7. The advisory committee requests the council of the league to authorize the issue of a questionnaire to the members of the league, asking those States which have a system of regulation for a full report of its workings and results, together with a statement of the grounds on which it is advocated, and those States which previously had a system of regulation but have abandoned it, for a report of the reasons that led them to take this course and of the results which have followed their action.

8. The advisory committee, having regard to the useful work done by women police in countries where they have been employed, recommends that women as well as men should be employed among the police engaged in dealing with prostitution.

9. (*a*) The advisory committee recognizes the great value of the proposal made by the delegate of the United States of America.[19] A general study of the conditions under which the traffic in women and children is carried on would form a valuable source of information for the advisory committee.

(*b*) The advisory committee suggests that the council might appoint an expert or experts to undertake a study on the spot, with the collaboration of the Governments of the countries concerned and in consultation with any expert whom they may desire to nominate; and if the principle of such a study commends itself to the council the committee would like to see the work undertaken without delay.

(*c*) If the expenses of such a study can not be met by the league, the council should consider whether the cost can be met from some other source.

The question as to whether its sessions should be open to the public was left to the committee to decide, and with some changes the other resolutions recommended by the committee were approved by the Council of the League of Nations. Mr. Abraham Flexner, an American distinguished in educational research and the author of "Prostitution in Europe," has been made chairman of the commission of experts appointed to investigate the international traffic, and as an evidence of its interest and desire to cooperate the American Social Hygiene Bureau has appropriated $75,000 toward the cost of the investigation.

The United States can not fail to be interested in the results of this inquiry and in the progress made in other countries in the de-

[19] This was a suggestion that a scientific investigation into the facts with reference to the international traffic in women and children was necessary as a basis for useful recommendations.

velopment of a single moral standard and of self-control and self-respect among young people. International cooperation, recognized as helpful by the United States in 1902, 1908, and 1910, is still necessary for the protection of Americans, particularly young girls and boys going to foreign countries either for amusement or for work. Moreover, practices of other countries are an influence for good or evil in the lives of Americans.

The field of this committee is one in which accomplishments have always been slow, because fundamental changes in education and the position of women are involved. The United States has gone further in the development of a sound public opinion on this whole subject than most nations; from some it has much to learn. An exchange of experiences with reference to educational, legal, and administrative measures for the prevention and suppression of commercialized vice should be mutually helpful.

RADIO TALKS.

A new method of reporting its findings was adopted by the bureau last year. From October, 1922, through May, 1923, a weekly radio talk on child-welfare topics was given by the Children's Bureau and broadcast by the Government Radio Station at Arlington. Altogether, 32 talks were given, in which the following topics were discussed: "The Children's Bureau," "The maternity act," "Care of the baby," "Care of the preschool child," "When should children's training begin?" "The young child's play and exercise," "The individual training of the child," "The fundamental rights of childhood," "The child's right to an education," "Child labor on the farms," "Child labor in canneries," "Industrial child labor in the homes," "Coal," "Experience in child labor law administration," "A national minimum of protection for the working child," "Safeguarding the child's right to normal home life," "Keeping dependent children in their own homes," "Safeguarding childhood through the juvenile court," "How juvenile delinquency begins," "The child's right to play," "The child's right to health," "Rural mothers and children and their health," "What the county is doing for children," "The county child-welfare worker," "The choice of a family home," "Houses for children—A moving-day talk," "Strawberry pickers," "Working mothers and their children," "Every child's right to be well born," and "Vacation time."

These radio releases have proved really helpful. A number of organizations and individuals have requested the complete set for press or radio use in other centers.

WEEKLY NEWS SUMMARY.

The practice of preparing a periodical summary of items of interest in the field of child care has been continued. Forty-four issues were mimeographed last year and circulated among members of the bureau staff and some 500 child-welfare organizations.

PUBLICATIONS.

During the fiscal year 1922–23 the bureau issued 34 new publications, charts, and leaflets, of which 12 were mentioned in the tenth annual report and 22 have been issued since that report went to press.

At the present time 25 are in press and 24 in preparation. Reprints of 33 of the bureau publications have been ordered and received, and 3 additional reprints are now in press.

Reports issued during the fiscal year ended June 30, 1923.

Tenth Annual Report of the Chief, 1922.
Infant Mortality and Preventive Work in New Zealand, by Robert Morse Woodbury, Ph. D. No. 105.
Infant Mortality: Results of a field study in Gary, Ind., based on births in one year, by Elizabeth Hughes. No. 112.
Directory of Local Child-Health Agencies in the United States. No. 108.
The Nutrition and Care of Children in a Mountain County of Kentucky, by Lydia Roberts. No. 110.
Physical Status of Preschool Children, Gary, Ind., by Anna E. Rude, M. D. No. 111.
Physical Standards for Working Children: Preliminary report of the committee appointed by the Children's Bureau of the United States Department of Labor to formulate standards of normal development and sound health for the use of physicians in examining children entering employment and children at work. Second edition. No. 79.
The Working Children of Boston: A study of child labor under a modern system of legal regulation, by Helen Sumner Woodbury, Ph. D. No. 89.
Child Labor, Separate No. 4, from Child Care and Child Welfare, Outlines for Study, prepared in cooperation with the Federal Board for Vocational Education. (Includes addenda covering recent laws.) Revised. No. 93.
Child Labor and the Welfare of Children in an Anthracite Coal-Mining District. No. 106.
Child Labor in the United States—Ten Questions Answered. No. 114.
Child Labor and the Work of Mothers in the Beet Fields of Colorado and Michigan. No. 115.
Standards and Problems Connected with the Issuance of Employment Certificates: Proceedings of the Conference held under the Auspices of the U. S. Children's Bureau and the National Education Association at Boston, Massachusetts, July 5–6, 1922. No. 116.
The Welfare of Children in Bituminous Coal-Mining Communities in West Virginia, by Nettie P. McGill. No. 117.
Canal Boat Children, by Ethel M. Springer. (Reprinted from the Monthly Labor Review, February, 1923.)
The Chicago Juvenile Court, by Helen Rankin Jeter. No. 104.
County Organization for Child Care and Protection. No. 107.
Proceedings of Conference on Mothers' Pensions Held Under the Auspices of the Mothers' Pension Committee, Family Division of the National Conference of Social Work, and the Children's Bureau, U. S. Department of Labor, Providence, R. I., June 28, 1922. No. 109.
Standards of Public Aid to Children in Their Own Homes, by Florence Nesbitt. No. 118.
Illegitimacy Laws of the United States Passed During the Years 1919 to 1922, inclusive.
A Brief Manual of Games for Organized Play Adapted from Standard Sources, by Martha Travilla Speakman. No. 113.

Leaflets, charts, etc., issued during the fiscal year ended June 30, 1923.

Minimum Standards of Prenatal Care. Folder No. 1.
The Nursing Profession and the Maternity and Infancy Act, Prepared by the National Organization for Public Health Nursing in cooperation with the U. S. Department of Labor, Children's Bureau.
Public Aid to Children in Their Own Homes—A Tabular Summary of State Laws in Effect November 1, 1922. Legal Chart No. 3. By Lulu L. Eckman.

Articles and papers for scientific journals and meetings.[20]

Administration of the Sheppard-Towner Act, by Grace Abbott. (Reprinted from Transactions, 13th Annual Meeting, American Child Hygiene Association, Washington, D. C., October 12–14, 1922.)

The Midwife Problem in the United States, by Anna E. Rude, M. D. (Read before the Seventy-Fourth Annual Session of the American Medical Association, San Francisco, June, 1923.)

The Relation Between Breast and Artificial Feeding and Infant Mortality, by Robert M. Woodbury, Ph. D. (Reprinted from the American Journal of Hygiene, Vol. II, No. 6, November, 1922.)

Decline of Infant Mortality in the United States Birth-Registration Area, 1915 to 1921, by Robert Morse Woodbury, Ph. D. (Reprinted from May, 1923, issue of the American Journal of Public Health.)

The Evolution of the Juvenile Court, by Katharine F. Lenroot. (Reprinted from the Annals of the American Academy of Political and Social Science, January, 1923.)

Farm Work and City School Attendance. (Monthly Labor Review, December, 1922.)

Methods of Field Research by the Federal Children's Bureau, by Emma O. Lundberg. (Publications of the American Sociological Society, Vol. XVII, p. 151.)

Rural Child Labor and Its Regulation, by Ellen Nathalie Matthews. (Read before the annual meeting of the International Association of Labor Officials, Richmond, May 2, 1923.)

Reports in press at close of fiscal year ended June 30, 1923.

Children of Preschool Age in Gary, Ind.: Part I, General Conditions Affecting Child Welfare; Part II, Diet of the Children.

Infant Mortality, Results of a Field Study in Baltimore, Md., based on births in one year.[21]

Maternity and Infant Care in a Mountain County in Georgia.[21]

Child Labor on Maryland Truck Farms.

Administration of Child-Labor Laws, Part 5: Standards Applicable to the Administration of Employment-Certificate Systems.

Minors in Automobile and Metal-Manufacturing Industries in Michigan.

Child Labor in North Dakota.

The Welfare of Children in Cotton-Growing Areas of Texas.

List of References on Juvenile Courts and Probation in the United States and a Selected List of Foreign References.

Illegitimacy as a Child-Welfare Problem, Part 3. Analysis of schedule studies of the care of children born out of wedlock in selected urban and rural communities.

Unemployment and Child Welfare.

Juvenile-Court Standards: Report of the Committee Appointed by the Children's Bureau, August, 1921, to Formulate Juvenile-Court Standards—Adopted by a Conference held under the Auspices of the Children's Bureau and the National Probation Association, Washington, D. C., May 18, 1923.[21]

Laws Relating to Mothers' Pensions in the United States, 1919–1923.

State Commissions for the Study and Revision of Child-Welfare Laws. (Revised.)

Child Welfare in the Island Possessions, Part I: Porto Rico.

Leaflets, charts, etc., in press at close of fiscal year ended June 30, 1923.

Decline of Infant Mortality from Selected Causes, 1915–1921.

Deaths Under 1 Year of Age, by Cause of Death.

Decrease in Summer Deaths, 1915–1920: Deaths under 2 years of age from diarrhea and enteritis.

Deaths Under 1 Year of Age, by Monthly Age Groups.

Summer Peak of Infant Deaths; deaths under 2 years of age from diarrhea and enteritis.

Relative Mortality Among Artificially and Breast Fed Infants; deaths among artificially fed infants compared with number expected at mortality rates prevailing among breast-fed infants.

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[20] In addition to the four articles which appeared in scientific journals during the fiscal year 1923 and which have been reprinted, six reprints of articles appearing during the fiscal year 1922 were issued during the fiscal year 1923.

[21] Issued July, 1923.

Leaflets, charts, etc., in press at close of fiscal year ended June 30, 1923—Con.

Maternal Mortality Thermometer; deaths from puerperal causes per 1,000 live births. (Revised.)

Infant Mortality Thermometer; deaths under 1 year of age per 1,000 live births. (Revised.)

Is Your Child's Birth Recorded? Dodger No. 3. (Revised.)

Backyard Playgrounds, reprinted from bulletin of Recreation Department, Oakland, Calif.[21]

Reports in preparation at close of fiscal year ended June 30, 1923.

Annual Report of the Administration of the Maternity and Infancy Act.

Mental Clinics for Preschool Children—Case Histories and Notes.

Maternal Mortality. (Revised.)

Causal Factors in Infant Mortality: A consolidated report of the infant-mortality studies of the Children's Bureau.

Instruction in Nutrition Work Through the Preschool Center: A study of the methods now being used in representative communities.

Health Supervision by Child-Placing Agencies.

Vocational Guidance and Juvenile Placement. (In cooperation with the Junior Division of the U. S. Employment Service.)

Work of Children on Truck and Small-Fruit Farms in Southern New Jersey.

Child Labor and the Work of Mothers on Norfolk Truck Farms.

Work Opportunities for Minors of Subnormal Mentality.

Child Labor in Georgia.

Industrial Accidents to Minors in Wisconsin, Massachusetts, and New Jersey.

Minimum-Wage Rulings Affecting Minors.

Foster-Home Care for Dependent Children: Eleven articles and bibliography.

Laws Relating to Sex Offenses Against Children.

Laws Relating to Interstate Placement of Dependent Children.

Dependent Children in the District of Columbia.

Juvenile Courts at Work—A Study of the Organization and Methods of Ten Courts.

Child Dependency and Delinquency in Two Rural States—A study of the prevalence, treatment, and prevention of child dependency and delinquency in North Dakota and South Dakota.

Adoption Laws in the United States.

Dependent Wards of the State of Wisconsin—A study of children placed by indenture from the State public school for dependent children.

The Work of Child-Placing Agencies—A study of 10 agencies caring for dependent children.

Social Significance of Feeble-Mindedness—A list of published reports of investigations in the United States, with abstracts of findings and conclusions.

A Handbook of Play and Recreation for the Blind.

DISTRIBUTION OF BUREAU PUBLICATIONS.

During the year 821,735 bureau publications (other than dodgers) were distributed—an increase of 195,985 over the number distributed in 1921–22, but about 400,000 less than the number distributed in 1919 when the bureau's printing fund was much larger than it has been since that time.

The distribution of popular bulletins in the Care of Children Series was as follows: Prenatal Care, 157,887; Infant Care, 334,654; Child Care, 129,161. This means an increase over last year of 60,644 in the distribution of Prenatal Care, of 131,401 in Infant Care, and of 58,791 in Child Care. During the last six months of the year the monthly distribution averaged approximately 33,000 copies of Infant Care, 14,000 of Prenatal Care, and 12,000 of Child Care. Even with this increase the bureau has had to refuse requests for thousands each month. The sales at the Government Printing Office of

[21] Issued July, 1923.

these three bulletins show an even greater increase. During the fiscal year 1921–22, 20,158 were purchased. Complete figures for the year 1922–23 are not yet available, but at the close of the year the Government Printing Office had on hand orders from various organizations and individuals for 165,000 copies. The printing fund, which had been $56,000 in 1921, was reduced to $36,000 in 1922. During the last year it was only $37,500, but approximately $10,000 of the maternity and infancy funds for 1922 were used for the purchase of copies of Prenatal and Infant Care and for other printing necessary to the administration of the act. Appropriations made since 1922 to carry out this act are not available for printing, although its administration has required increased printing expenditures. During the coming year the bureau will be very much handicapped by an entirely inadequate appropriation for printing.

Each year the number of individuals who seek information from the Children's Bureau as to some phase of child care increases. During the year just passed the Children's Bureau received 98,553 letters, an increase of 13,059 over the preceding year.

In addition to the public and private child-welfare agencies of the country with which the bureau maintains active cooperation, individual parents in increasing numbers are applying to the bureau for information. In giving the information sought the bureau always takes advantage of the opportunity to inform its correspondents of helpful local agencies.

GENERAL DEVELOPMENT OF THE WORK OF THE CHILDREN'S BUREAU.

In creating the Children's Bureau Congress gave it a field of service—promotion of the welfare of all the children of the United States—second in importance to none and at the same time gave it an appropriation entirely inadequate for the responsibilities laid upon it. The bureau has never been able to supply the expert field consultation service or conduct on broad national lines the research which the welfare of American children demands.

The wisdom of a gradual development of both its consultation service and its research activities is recognized. At the same time we can not afford to ignore the costliness of slow development in the scientific care of children. After more than 10 years of experience it is possible for the Children's Bureau to expand along lines of clearly demonstrated need and with the assurance of local cooperation and interest.

In the United States, whatever may be said by other nations which can not see below the surface manifestations of national interests, we do care more for our children than for our commerce or our agriculture. If a declaration of independence were to be written to-day, American women would ask that in the enumeration of the objects for which governments are instituted the welfare of children should head the list; and the American men would agree. It is time that with characteristic American directness we undertake to realize that object now.

Respectfully submitted.

GRACE ABBOTT, *Chief.*

Hon. JAMES J. DAVIS,
Secretary of Labor.

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